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LINE 7

24-CIV-04622

MARTIN AERON ARIAS VS. BERG SENIOR SERVICES, LLC

MARTIN AERON ARIAS
BERG SENIOR SERVICES, LLC

HELGA HAKIMI
ANDREW R SHALAUTA

MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

TENTATIVE RULING:

The court rules on plaintiff's unopposed motion for final approval of class action settlement and award of attorneys' fees, service award and costs as follows:

First, the court notes that plaintiff failed to comply with paragraph 11 of Case Management Order No. 1 filed July 30, 2024, which requires a binder with courtesy copies. This failure increases the court's workload.

The Court Grants Approval of the Settlement

On February 17, 2026, the court granted preliminary approval to this class and PAGA (Private Attorney General Act) settlement. The action alleges wage and hour violations.

According to the preliminary approval motion, it was estimated that there are approximately 450 class members with a proposed settlement amount of is \$1,100,000.00. The settlement will provide a payment of \$60,000 to the California Labor and Workforce Development Agency (LDWA) (i.e., 75% of the \$80,000 amount allocated to resolve the PAGA allegations). The remaining \$20,000 shall be distributed amongst Aggrieved Employees. The LDWA has not objected to the settlement. The average payment to participating class members is \$1,437.90, and the highest is \$3,374.84. (Declaration of Kevin Lee ¶¶ 6-8.)

In ruling on settlements involving class and PAGA claims, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“ ‘The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.’ “].)

In reviewing the evidence presented and conducting its independent review, the court finds that all the conditions for final approval have been met. The court gives final approval to the

settlement, including the allocation between the class and PAGA settlement. (Code of Civ. Proc., § 382; *Richmond v. Dart Industries* (1981) 29 Cal.3d 462, 470).

According to the declaration of Kevin Lee of Phoenix Settlement Administrators (Phoenix), the approved settlement administrator, on February 17, 2026, Phoenix received a class list from class counsel, on March 9, 2026, received an updated list from defense counsel, and on March 9, 2026 mailed 431 class notice with addresses updated through the national change of address database. (Lee Decl., ¶¶ 3, 4.) , 2026) Eighteen notices were returned, fourteen packages were re-mailed with a better mailing addresses and four notices were unable to be remailed. (*Id.* ¶¶ 4, 5.) There have been no objections and no valid requests for exclusion. (*Id.* ¶¶ 6, 7.)

The class is ascertainable in that the class members have already been identified by defendant and they received notice of the settlement.

There is a community of interest in that common questions of law and fact predominate involving whether defendant properly calculated employee compensation. For settlement purposes, this community of interest is sufficient. This court has already found that plaintiff/class representative Martin Aeron Arias's claims are typical of the class claims because he is alleged to have suffered the same injury as other class members and there is no information to the contrary. He adequately represents the class and has experienced class counsel. The settlement avoids the risk of the uncertainty of litigation. The settlement is fair adequate and reasonable. The law favors settlement and the fact that the class might be able to obtain more from a trial must be balanced against the risk of not having a class certified, receiving less than the settlement, including a defense verdict, the time and money that it would take to take the case to trial and through a potential appeal, and the potential for a change in law. The court in granting preliminary approval discussed the risks and benefits of the settlement. The case was mediated with mediator, Louis Martin, and the fact that there were no objections or opt-outs out and the LDWA did not object strongly supports approval of the settlement. The court approves the settlement.

ATTORNEYS FEES

The court denies without prejudice plaintiff's counsel request for attorneys' fees.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503.)

In reviewing the evidence submitted, the court finds that plaintiff's counsel makes no attempt to show that the hourly rates are reasonable for San Mateo County where this case is venued. Counsel must demonstrate that the rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].)

The court cannot make a determination of whether the work performed was reasonable. Raul Perez's declaration provides a summary of the hours worked in a chart in paragraph 19 of his deposition. There is a general overview of the litigation in paragraphs 2-9 of the Perez declaration, but it is conclusory. As a leading treatise explains:

[14:145.1b] Proof required: The burden is on class counsel to prove the reasonable number of hours they expended on the case. [*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 CA4th 853, 883, 160 CR3d 557, 583]

- 1) [14:145.1c] Declarations generally sufficient: To satisfy this burden, counsel is not required to provide detailed billing timesheets. Declarations of counsel showing the number of hours expended and the tasks performed are generally sufficient. [*Concepcion v. Amscan Holdings, Inc.* (2014) 223 CA4th 1309, 1324-1325, 168 CR3d 40, 53-54 (collecting cases); see *Association for Los Angeles Deputy Sheriffs v. Macias* (2021) 63 CA5th 1007, 1031, 278 CR3d 487, 508—counsel declarations compiling data gathered from personal review of firm's billing records was not inadmissible hearsay for this purpose]

But the declarations should be sufficiently detailed to allow the court to determine if there was duplicative billing among firms or lawyers, and to estimate the time spent on tasks such as motions.

(*Cal. Prac. Guide Civ. Pro. Before Trial*, § 14:145.1b *et seq.* (TRG June 2026 update).) And this court explained what it was looking for in its ruling on the preliminary approval motion:

The Court will decide on attorneys' fees, costs and service award at a hearing based upon a noticed motion, which will be heard on the same date as the hearing on final approval. Class Counsel is to submit evidence supporting each of these requests. The Court will not make a predetermination about the reasonableness of the attorneys' fees or service award.

For the attorneys' fees award, counsel shall provide sufficient evidence so that the Court can perform a lodestar cross-check, including either billing records or comparable evidence, including which attorneys or support staff worked on each task, support for the hourly rate as reasonable in San Mateo County, and evidence, if any, supporting an award of a multiplier.

(Min. of Feb. 17, 2026.) The court has none of this evidence. Based upon the court's review of the file, there were no novel issues (certainly none like class counsel's work in *Iskanian v. CLS Transportation Los Angeles* (2014) 59 Cal.4th 348.) It appears to be a standard wage-and-hour case with no law and motion matters, except the preliminary approval, or discovery, a few case management conferences where no substantive issues or problems were raised, and an agreement to attend mediation early in the case. It is unclear why eight separate attorneys worked on the case and whether there was overlap of work or how much time was spent on any task.

COSTS

The court will consider plaintiff's counsel's requested costs of \$15,177.88 and Phoenix's request for fees when it considers a renewed motion for attorneys' fees and costs.

SERVICE FEE AWARD

The court's ruling on preliminary approval stated: "For the service award, the class representative must submit a declaration with specific facts regarding his contributions; general statements are insufficient. (*Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 805.) If there are any specific claims of Plaintiff that are consideration for any general release or specific reputational harm, Plaintiff shall identify them for the Court." (Min. of Feb. 17, 2026.) The court does not see any declaration from plaintiff. Therefore, the request for a service award is denied without prejudice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court modifies San Mateo Local Rule to allow the parties to add additional information that they believe is necessary for the final approval, but only when it is not inconsistent with the tentative ruling issued by the court. The court also suggests that the parties add the findings from the preliminary approval ruling since the final settlement approval summarizes those findings.

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MOTION FOR ATTORNEYS' FEES, COSTS, AND A CLASS REPRESENTATIVE ENHANCEMENT PAYMENT

TENTATIVE RULING:

See tentative ruling for motion for final approval.
